Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: https://sf.courts.ca.gov/general-information/holiday-schedules.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551–3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551–3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 416 to make an objection to the Tentative Ruling in your case, please call (415) 551– 3756 or send an email to Department416@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you***. Remote appearances by video or telephone can be made utilizing the ZOOM platform, **effective January 2, 2024**:

- If you are *joining by video,* go to www.zoom.com/join and follow the instructions below:
  - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
  - Click "Launch Meeting" then "Open zoom.us".
  - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
  - Enable your camera and click "Join".
  - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
  - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT***.
  - Using headphones may help you hear more clearly.

- If you are *joining by phone,* dial 1-**(669)254-5252** or 1-**(669)216-1590** and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482
You can also log into your hearing **directly** using the link below:
https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09

Department 404
Meeting ID: 161 305 3325
Passcode: 282709
You can also log into your hearing **directly** using the link below:
https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSttYkR6dz09

Department 416
Meeting ID: 161 123 0725
Passcode: 040696
You can also log into your hearing **directly** using the link below:
https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09

When you join the hearing on Zoom:

1. You are to mute your audio when you are not speaking.
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person MUST speak at a time.

PROHIBITION ON RECORDING: Do not record the hearing in any way. Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited.** Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to $1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

MICHAEL EDWARD GRAVES, Petitioner VS. RANJIE LONG, Respondent	Case Number: FPT-25-378624 Hearing Date: March 3, 2026 Hearing Time: 9:00 AM Department: 403 Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, ATTORNEY'S FEES AND COSTS, MOVE-AWAY; PASSPORT FOR CHILD; REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, ATTORNEY'S FEES AND COSTS, MOVE-AWAY; PASSPORT FOR CHILD

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

1) The parties are Petitioner Michael Edward Graves (Father) and Respondent Ranjie Long (Mother). They share one minor child who is subject to these proceedings: Archernar Long (DOB: 02/19/24).

2) On October 28, 2025, Mother filed a Request for Order seeking modification of the existing child custody orders, move-away orders, orders regarding the minor child's passport, child support, and attorney's fees.

3) On December 8, 2025, the parties appeared at Readiness hearing. Family Court Services (FCS) Mediation was set for February 3, 2026, and a return hearing was set on March 3, 2026.

4) On February 3, 2026, the parties participated in FCS Mediation, and they did not reach an agreement because Mother requests a "move-away" order and Father is in opposition to her request.

5) The Court notes that Father did not file a Responsive Declaration. The Court will therefore treat Father's lack of response as consenting to Mother's requests.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) Mother's request for modification of the existing child custody orders, permission to relocate with the minor child to Vancouver Canada, and child support shall be set for trial.

3) **The parties are ordered to appear** to set the matter for trial. The parties shall be prepared to inform the Court of their time estimate for trial and number of witnesses they intend to present.

4) Mother and Father are ordered to file and serve updated Income and Expense Declarations no later than 15 days before the commencement of trial.

5) Mother's unopposed request for attorney's fees is GRANTED in the amount of $10,000. Father shall pay this balance in full by 5:00 p.m. on March 17, 2026.

6) Mother's unopposed request that Father cooperate in executing any and all forms necessary to obtain a passport for the minor child is GRANTED.

7) All prior orders, not in conflict shall remain in full force and effect.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

MARIA DE LOS ANGELES RAMIREZ HERNANDEZ, Petitioner VS. EDILZAR FERNANDO JUAREZ MEJIA, Respondent	Case Number: FPT-25-378672 Hearing Date: March 3, 2026 Hearing Time: 9:00 AM Department: 403 Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHILD CUSTODY, VISITATION (PARENTING TIME), ORDER SHORTENING TIME

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner Maria Hernandez (Mother) and Respondent Edilzar Mejia (Father). They share one minor child who is subject to these proceedings: Keyla Ramirez (DOB: 07/11/17).

2) On February 13, 2026, Father filed an emergency request with this Court asking that he be awarded sole legal and sole physical custody of the minor child with no visitation to Mother. He stated Mother refused to provide him with any information as to the minor child's whereabouts. The Court granted an order shortening time for service and hearing and set the matter for March 3, 2026.

3) On February 25, 2026, Mother filed a Responsive Declaration seeking:

   a. Sole legal and sole physical custody;

   b. Visitation to Father from Sunday at 12:00 p.m. – Tuesday before school;

   c. No physical punishment;

d. That grandmother is not present during parenting time; and

e. That minor child be permitted to attend her after school program and not be picked up early.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) Mother shall immediately provide Father with her address. The address where the minor child resides during Mother's parenting shall be disclosed to Father no later than noon on March 3, 2026.

3) The Court confirms the existing child custody and visitation orders filed on December 26, 2025. There shall be no modification to the existing orders at this time.

4) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

CHRISTINA ANN RUIZ, Petitioner VS. EDUARDO JOSE JUAREZ III, Respondent	Case Number: FMS-20-387302 Hearing Date: March 3, 2026 Hearing Time: 9:00 AM Department: 403 Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner Christina Ruiz (Mother) and Respondent Eduardo Juarez (Father). They share two minor children who are subject to these proceedings: Alina (DOB: 07/22/17) and Eduardo (DOB: 09/20/18).

2) On November 5, 2025, Father filed a Request for Order seeking: (a) orders to maintain joint legal and joint physical custody; (b) modification of the existing parenting plan to a 2/2/5 parenting plan with exchanges to occur at 8:00 a.m. at the children's school; and (c) implementation of a holiday schedule.

3) On November 18, 2025, Mother filed a Responsive Declaration wherein she alleges that an agreement was recently reached during Family Court Services (FCS) Mediation. Mother asserts Father only wants to change the existing order is because he found out that Mother is allowed to claim the children for tax purposes, and he is not.

4) On December 8, 2025, the Court set the matter for FCS Mediation on February 23, 2026 and set a return hearing on March 3, 2026.

5) On February 20, 2026, Father filed a second Request for Order wherein he asks the Court to enforce the existing passport order for the children. Father states that Mother is not cooperating with the Court's prior order. This Request for Order is set for hearing on March 23, 2026.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) The Court GRANTS Father's request for the implementation of a 2/2/5 parenting plan. Per Father's request, he shall have care and custody of the children on Monday and Tuesday. Mother shall have care and custody of the children on Wednesday and Thursday, and the parties shall alternate weekends. This schedule will start with Mother having the children on March 4, 2026 (Wednesday) and March 5, 2026 (Thursday). Father shall have the children Friday, Saturday, Sunday, Monday and Tuesday from March 6, 2026 – March 11, 2026 at 8:00 a.m. All exchanges shall occur at 8:00 a.m.

3) The Court DENIES Father's request for modification of the existing holiday schedule.

4) Father's Request for Order filed February 20, 2026 is hereby advanced to today, March 3, 2026. Father's request is GRANTED. Mother shall comply with the prior order regarding the children's passports. Mother shall cooperate and sign any and all documentation for Father to obtain the children's passports, no later than 5:00 p.m., on Friday, March 6, 2026. If Mother does not cooperate by the stated deadline, the Court will consider granting Father sole legal authority over the issue of the children's passports. Father may file an emergency motion in the event Mother does not cooperate, and the Court will issue any orders deemed necessary.

5) In light of the Court's order above, the hearing schedule on March 23, 2026 is VACATED.

6) All existing orders, not in conflict, shall remain in full force and effect.

7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

JAMES PROPP, Petitioner VS. DENISE CHILDERS, Respondent	Case Number: FDI-14-781786 Hearing Date: March 3, 2026 Hearing Time: 9:00 AM Department: 403 Presiding: BOBBY P. LUNA

REQUEST FOR ORDER:

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner James Propp and Respondent Denise Childers.
2) On 12/23/25, Petitioner filed a Request for Order seeking bifurcation and termination of marital status.
3) There is no Proof of Service on file indicating Petitioner's 12/23/25 Request for Order was served on Respondent.
4) Petitioner's Request for Order does not include mandatory form FL-315 (Request or Response to Request for Separate Trial).

B. Findings and Order

1) The Court finds Petitioner's 12/23/25 Request for Order was not served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
2) The Court further finds Petitioner must file mandatory form FL-315 (Request or Response to Request for Separate Trial) before his Request for Order seeking bifurcation and termination of marital status can be adjudicated.

3) As such, this matter is **continued to 7/7/26 at 9 AM in Dept. 403.**

4) At least 16 Court days prior to the next hearing date, Petitioner shall file form FL-315 (Request or Response to Request for Separate Trial) and serve on Respondent the (a) 12/23/25 Request for Order, (b) form FL-315 (Request or Response to Request for Separate Trial), (c) Continuance Order contained herein, and (d) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure (i.e., a person over the age of 18 shall mail the documents to Respondent and then Petitioner shall file form FL-335 (Proof of Service) with the Court confirming service was effectuated).

5) At least 9 Court days prior to the next hearing date, Respondent may file a Responsive Declaration.

6) At least 5 Court days prior to the next hearing date, Petitioner may file and serve a Reply Declaration.

7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

ANITA YUAN YUN HUANG, Petitioner VS. WEN HUA YANG, Respondent	Case Number: FDI-16-786194 Hearing Date: March 3, 2026 Hearing Time: 9:00 AM Department: 403 Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: ENFORCEMENT OF JUDGEMENT ORDER TO SELL HOME; SEE ITEM #7

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

1) The parties are Petitioner Anita Yuan Yun Huang and Respondent Wen Hua Yang.

2) On 2/15/24, the Court issued a Final Statement of Decision and Order, which includes disposition of the jointly owned condominium located at 110 Otter Cove Terrace in San Francisco CA. The Court ordered, in pertinent part: "The condominium is assigned to Petitioner, with an equalizing payment owed by Petitioner to Respondent in the amount of $366,000. Petitioner shall have until August 31, 2024 to arrange the financing necessary to purchase Respondent's community property share of the condominium. If she is unable to do so by that date, the condominium shall be sold and the net proceeds split evenly between the parties after the payment of commissions, fees, taxes, and other closing costs. In the event the condominium is to be sold, Petitioner shall provide Respondent with the names of three proposed local real estate agents to act as the listing

agent no later than September 21, 2024." See Final Statement of Decision and Order filed 2/15/24.

3) On 11/26/25, Respondent filed a Request for Order seeking enforcement of the orders set forth above. Respondent assets that Petitioner continues to live in the condominium, but Petitioner has neither paid the equalization payment to Respondent nor taken steps to sell the property. Respondent requests:

   a. An order providing Respondent exclusive authority to sell the Condominium, including choosing a real estate agent and accepting/rejecting offers;

   b. An order for a court appointed elisor to sign the listing agreements and/or other documents on Petitioner's behalf; and

   c. $1,500 in sanctions.

4) On 2/18/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for Order asserting that she provided Respondent with the names of three real estate agents via email on 8/12/25, but Respondent did not respond.

B. Findings and Order

1) **The parties are ordered to appear** to discuss to the sale of the condominium located at 110 Otter Cove Terrace in San Francisco CA. At hearing, the Court is inclined to set new dates by which the parties are to select a real estate agent so the property can be sold forthwith. The Court is not inclined to grant Respondent's requests for exclusive authority to effectuate the sale of the property or appointment of an elisor to act on Petitioner's behalf, as the Court believes those requests are premature. No evidence of Petitioner's uncooperative conduct was presented, so the Court is also inclined to deny Respondent's request for $1,500 in sanctions.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

KRISTIN S. PECK, Petitioner VS. SIMON E. PECK, Respondent	Case Number: FDI-17-787957 Hearing Date: March 3, 2026 Hearing Time: 9:00 AM Department: 403 Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME), OUR FAMILY WIZARD FOR NON-URGENT COMMUNICATION, THERAPY FOR OTTO, ETC.

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner Kristin Tilley Peck (Mother) and Respondent Simon Peck (Father). They share two minor children who are subject to these proceedings: Tilda Peck (DOB: 04/08/10) and Otto Niles Peck (DOB: 09/30/14).

2) On September 29, 2025, Mother filed a Request for Order seeking:

   a. Sole legal and sole physical custody of Tilda;

   b. Sole legal custody of Otto (maintain joint physical custody order);

   c. No visitation for Father as to Tilda;

   d. Father to have alternate weekends with Otto (Friday at 5:00 p.m. – Sunday at 7:00 p.m.);

   e. Holiday schedule;

   f. Passport orders;

   g. Our Family Wizard for non-emergency communication;

h. Transfer family Verizon plan to Mother; and

i. No modifications to Apple IDs.

3) On October 7, 2025, Counsel for Mother filed a Declaration of Jennifer Tilley in Support of Petitioner's Request for Order re: Modification of Custody and Visitation. This document has not been read, nor will it be considered by the Court, as the document is "hearsay," and not subject to any exception.

4) On October 7, 2025, Counsel for Mother filed a Declaration of Jody Pritchard in Support of Petitioner's Request for Order re: Modification of Custody and Visitation. This document has not been read, nor will it be considered by the Court, as the document is "hearsay," and not subject to any exception.

5) On October 7, 2025, Counsel for Mother filed a Declaration of Steve Cvitanovic in Support of Petitioner's Request for Order re: Modification of Custody and Visitation. This document has not been read, nor will it be considered by the Court, as the document is "hearsay," and not subject to any exception.

6) On February 18, 2026, Father filed a Responsive Declaration wherein Father requests:

a. Maintain joint legal and joint physical custody orders;

b. Maintain 50/50 parenting plan for both children;

c. Deny elimination of visits with Tilda;

d. Family therapy for Father and Tilda;

e. Therapy for Otto with a jointly selected therapist;

f. OFW for non-emergency communications; and

g. Holiday and vacation plans exchanged by January 31st of each year, with Mother's plans having preference on dates that conflict in even years and Father's preference over conflicting dates in odd years, final itineraries be exchanged 2 weeks prior to travel, and possession of the children's passports 10 days prior to international travel.

7) On February 18, 2026, Counsel for Father filed a Declaration of Gabrielle Thorpe and Memorandum of Points and Authorities in Support of Respondent's Objections to Petitioner's 3rd Party Declaration. This document has not been read, nor will it be considered by the Court, as the document is "hearsay," and not subject to any exception.

8) On February 18, 2026, Father filed Respondent's Objections to Petitioner's 3rd Party Declarations. In light of the Court's ruling set forth above, the Court did not consider, nor did it rule on each individual objection. The Court will restate that it did not read, nor will it consider ANY portion of the 3rd party declarations. Should counsel for Father require the Court to rule on this pleading, the Court would then be required to read each of the 3rd party declarations.

B. Findings and Order

1) The Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.

2) The Court DENIES Mother's request for modification of custody orders.

3) As to the minor child, Tilda, the Court GRANTS Mother's request to modify the parenting plan. Any parenting time between Tilda and Father shall be at the minor child's discretion.

4) As to the minor child, Otto, the Court DENIES Mother's request to modify the existing parenting plan.

5) The Court GRANTS Mother's request that the parties implement a formal holiday schedule as to Otto only. The Court hereby adopts the holiday schedule as proposed by Mother in the FL-341(c) contained within the Request for Order filed on September 29, 2025.

6) The Court GRANTS Mother's request that the parties utilize Our Family Wizard for non-emergency communication related to the children only.

7) The Court DENIES both parent's requests that the Court order therapy between Father and either of the children. Should Father and Mother mutually decide that therapy is beneficial for either of their children, they shall meet and confer and determine and select the type of therapy that is in their children's best interest. There is no need for Court intervention on this issue unless and until the parties are at an impasse.

8) Regarding travel, Mother's request that each parent provide the other parent with a minimum 30-days written notice via OFW including the proposed travel locations, dates, flight information, hotel or other accommodation information, and emergency contact information is GRANTED. Mother's request that the names of who will be traveling is DENIED.

9) Mother's request that she maintain and possess both children's passports is DENIED. In the alternative, she may keep, in her care and possession, Tilda's passport and Father shall keep in his care and possession, Otto's passport.

10) Each parent is ordered to provide the other parent with the passport in their possession, 7 days in advance of any agreed-upon travel and the other parent shall immediately return the passport back to the original holding parent, upon return from the travel.

11) Mother's request to terminate the family Verizon plan and to transfer the children's existing cellular telephone and number to her Verizon separated account is DENIED.

12) All prior orders not in conflict with this order remain in full force and effect.

13) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

KEITH RICHARDSON, Petitioner VS. LACHON RICHARDSON, Respondent	Case Number: FDI-20-794120 Hearing Date: March 3, 2026 Hearing Time: 9:00 AM Department: 403 Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: MOTION TO SET ASIDE JUDGEMENT CODE 2122; CCP 473

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

1) The parties are Petitioner Keith Richardson and Respondent Lachon Richardson.
2) On 2/28/25, the Court entered judgment, which includes a provision for Petitioner to pay Respondent $160,000 total in $3,500 monthly payments due on the 1st of each month until the balance is paid in full. This provision is contingent on Petitioner's accounting documents showing that business earnings from Keith's Chicken and Waffles were no greater than 5% above $100,000 annually for 2023, and Petitioner was to provide the accounting paperwork within 30 days.
3) On 12/17/25, Petitioner filed a Request for Order seeking to set aside judgment under Code of Civil Procedure section 473 and Family Code section 2122. Petitioner asserts that he lacks the ability to comply with the payment terms of the judgment because his income is generated from a small business with limited liquid funds. Petitioner further asserts the Court relied on false information when entering judgment because Respondent represented that she has a $3,000 monthly rent obligation despite living with her parents rent free. Petitioner states the motion is based on, "actual fraud, perjury, failure to disclose material facts, and attorney abandonment."

4) On 2/23/26, Respondent filed a Motion to Strike Petitioner's Request for Order pursuant to Code of Civil Procedure section 436. Respondent's request is based on lack of supporting documents and sufficient facts and lack of proper service under Code of Civil Procedure section 1010 and California Rules of Court, rule 5.92(b)(1). Attached to Respondent's Motion to Strike are the documents with which Respondent was served, and Petitioner's supportive declaration (which was filed with the Court) is not attached.

5) Based on the foregoing, the Court finds good cause to **continue the hearing to 7/7/26 at 9 AM in Dept. 403** for proper service to be effectuated.

6) The Court declines to exercise its discretion under Code of Civil Procedure section 436; Respondent's Motion to Strike is therefore DENIED.

7) At least 16 Court days prior to the next hearing date, Petitioner shall reserve on Respondent the 12/17/25 Request for Order and supportive declaration using a service method authorized by the Code of Civil Procedure and then file form FL-335 (Proof of Service) with the Court confirming service was effectuated.

8) At least 9 Court days prior to the next hearing date, Respondent may file a Responsive Declaration.

9) At least 5 Court days prior to the next hearing date, Petitioner may file and serve a Reply Declaration.

10) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

BRETT LAMY, Petitioner VS. LIANA DIMAURO, Respondent	Case Number: FDI-25-800840 Hearing Date: March 3, 2026 Hearing Time: 9:00 AM Department: 403 Presiding: BOBBY P. LUNA

RESPONDENTS REQUEST FOR NEEDS BASED ATTORNEYS FEES - PETITIONERS REQUEST FOR COURT ORDERED MEDIATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) On for hearing is Respondent Liana DiMauro's Request for Order filed 4/8/2025 seeking $15,000 in need-based attorney's fees and costs. Respondent also asks the Court to order Petitioner Brett Lamy to pay Respondent $10,785 within 10 days of the Court's order "for Petitioner's responsibility for apartment rent, move-out and cleaning expenses for the apartment, and Petitioner's separate responsibility for expenses related to his dog and tickets from January 2025 to 3/31/2025." Respondent also asks the Court to order Petitioner to "reimburse Respondent for any additional expenses related to Petitioner's belongings, vehicles, and dog Libby after 3/31/2025."

2) On 4/8/2025, Respondent's attorney filed a declaration in support of Respondent's request for fees.

3) On 6/9/2025, Petitioner filed a Responsive Declaration. Petitioner states the parties have a valid, enforceable Premarital Agreement which requires the parties to submit any dispute arising under

the terms of the agreement to mediation before petitioning the Court. Petitioner states Respondent's request for attorney's fees should fail because the Premarital Agreement requires the parties to first mediate any dispute which "arises under the terms of this agreement" and that attorney's fees are only authorized under the Premarital Agreement to prevailing parties in an enforcement action. Petitioner states Respondent unilaterally requested a two-month extension of their lease without Petitioner's consent or authorization. Petitioner states he is not responsible for expenses related to dog Libby because Libby is Respondent's dog under the Premarital Agreement until Petitioner picked up Libby on 3/31/2025. Petitioner also states that some of Respondent's charges are unreasonable and unsupported by written or market justification. Petitioner asks the Court to deny all of Respondent's requests. Petitioner asks the Court to reimburse him for items that he claims Respondent took from him. Petitioner asks the Court to order Respondent to return his passport, birth certificate, and social security card. Petitioner asks the Court to sanction Respondent $1,000 for delay tactics under Family Code section 271. Petitioner asks the Court to order Respondent to submit to mediation under the Premarital Agreement.

4) On 6/16/2025, Respondent filed a Reply Declaration responding to Petitioner's allegations. Respondent reiterates her original requests, asks the Court to deny Petitioner's requests, and adds requests for the Court to order Petitioner to reimburse her for health insurance premiums paid on Petitioner's behalf and for half of the 2023 tax refund.

5) At the prior 6/24/2025 hearing, the Court issued the following orders:

    a. The Court's jurisdiction to adjudicate Respondent's requests for reimbursement is reserved for trial and / or final Judgment in this matter. The Court does not normally adjudicate post-separation reimbursement claims on the law and motion calendar. It also does not appear to the Court that the parties have attempted to mediate their dispute regarding Respondent's reimbursement claims, and it appears the parties' Premarital Agreement may require them to do so.

    b. Respondent states the parties "attended therapy in January 2025" to "facilitate a respectful and organized separation." Respondent states that Petitioner's withdrawal from therapy "and refusal to respond to settlement offers demonstrate that mediation would not

have been effective." Based on the limited information before it, it does not appear to the Court that therapy designed to "facilitate a respectful and organized separation" is akin to mediation to resolve legal claims, which the Court assumes is the intent of the mediation clause contained in the parties' Premarital Agreement. However, the Court will reserve jurisdiction to make a finding on this issue at the next hearing date.

c. A future hearing date of **Thursday, 9/4/2025 at 9:00 AM in Dept. 403** is set on the following issues: (a) Respondent's request for need-based attorney's fees and (b) Petitioner's request that the Court order Respondent to submit to mediation. The Court would like to see a copy of the parties' Premarital Agreement before adjudicating these requests. At least 10 calendar days prior to the next hearing date, Respondent shall lodge with the Court a copy of the parties' Premarital Agreement. At least 10 calendar days prior to the next hearing date, both parties shall file and serve a declaration (not to exceed 5 pages in length, not including exhibits) regarding their position on whether the Premarital Agreement precludes the Court from adjudicating Respondent's request for need-based attorney's fees and costs before the parties have attended mediation.

d. If Petitioner's passport, birth certificate, and social security card are still in Respondent's possession or control, she shall immediately return those items to Petitioner.

e. All other requests set forth in Petitioner's Responsive Declaration and Respondent's Reply Declaration are denied without prejudice as they are beyond the scope of Respondent's 4/8/2025 Request for Order.

6) On 8/27/2025, the parties filed a Stipulation Order to Continue Hearing and the 9/4/2025 hearing was continued to 11/25/2025.

7) On 11/18/2025, the parties filed a Stipulation Order to Continue Hearing and the 11/20/2025 hearing was continued to 2/5/2026.

8) On the Court's own motion, the 2/5/2026 hearing was continued to 3/3/26. See Order Re: Continuance filed 11/21/2025.

9) On 11/26/2025, Petitioner filed a supplemental declaration asserting that Respondent never challenged the Premarital Agreement, and the factual and legal issues raised in Respondent's Request for Order are controlled by the Premarital Agreement. Petitioner asks the Court to deny

Respondent's request and award Petitioner $15,000 in attorney's fees incurred as result of Respondent filing the Request for Order, which Petitioner asserts is a violation of the Premarital Agreement.

10) On 2/20/2026, Respondent's attorney filed a supplemental declaration asserting a disparity in income and access to funds and substantiating Respondent's request for $30,000 in needs based-attorney's fees and costs.

11) 2/20/2026, Respondent filed a supportive Memorandum of Points and Authorities. Respondent asserts that the parties attended mediation in February 2026; however, mediation was unsuccessful because Petitioner refused to negotiate in good faith. Respondent further asserts that Petitioner's uncooperative conduct demonstrates a desire to harm Respondent financially and has prolonged and delayed litigation. Respondent states that Petitioner is refusing to pay her spousal support despite the clear terms of the Premarital Agreement and is suing her parents in civil court over a shared stock investment. Attached as Exhibit A is the parties' Premarital Agreement.

12) On 2/20/2026, Respondent filed an Income and Expense Declaration.

B. Findings and Order

1) Per the Court's 6/24/2025 order, this hearing is specifically set on the following issues: (a) Respondent's request for need-based attorney's fees and (b) Petitioner's request that the Court order Respondent to submit to mediation. The Court indicated review of the parties' Premarital Agreement was necessary before adjudicating these requests.

2) After review of the parties Premarital Agreement, the Court finds that:

   a. It is clear the parties agreed to submit to mediation any dispute arising under the terms of the Premarital Agreement before petitioning the Court.

   b. The parties agreed that the prevailing party will recover reasonable attorney's fees from the losing party for any action to enforce or for breach of the Premarital Agreement, as well as any other judicial or quasi-judicial remedy related to the rights or obligations set forth in the Premarital Agreement. The terms of the Premarital Agreement address prevailing party attorney's fees only.

3) Based on Respondent's unrefuted assertion, the Court finds the parties attended mediation in February 2026.

4) The Court further finds that needs-based attorney's fees is distinct from prevailing party's attorney's fees; therefore, the terms of the Premarital Agreement do not preclude Respondent from seeking a need's-based attorney's feed award.

5) Respondent's request for $30,000 in needs-based attorney's fees is GRANTED. An award of attorney's fees and costs is appropriate here because there is a demonstrated disparity between the parties in access to funds to maintain counsel and in the ability to pay for legal representation. Petitioner has or is reasonably likely to have the ability to pay for legal representation for both parties. $30,000 in attorney's fees and costs are reasonable and necessary.

6) Petitioner's request for $15,000 in attorney's fees sanctions is DENIED.

7) Counsel for Respondent shall prepare the Findings and Order After Hearing.

8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

ABIGAIL RODRIGUEZ MONTECINO, Petitioner VS. MARK YAP MONTECINO, Respondent	Case Number: FDI-25-801374 Hearing Date: March 3, 2026 Hearing Time: 9:00 AM Department: 403 Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner Abigail Rodriguez Montecino and Respondent Mark Yap Montecino. They married on 5/30/17. Per the Petition filed 5/9/25, Petitioner contends the parties separated on 12/4/24, for a marriage of 7 years and 6 months. Per the Response filed 6/20/25, Respondent contends the parties separated on 1/9/22, for a marriage of 4 years and 7 months. The parties have no minor children in common.

2) On 10/8/25, Petitioner filed a Request for Order filed seeking temporary spousal support. The matter was set for hearing on 11/20/25.

3) On 11/17/25, Petitioner submitted a Request to Enter Default and a proposed True Default Judgment in this matter, but Respondent filed a Response to the Petition on 6/20/25, which precludes entry of his default.

4) At the prior 11/20/25 hearing (see Findings and Order After Hearing (FOAH) filed 12/11/25), the Court continued the hearing to 3/3/26 because Petitioner failed to file an Income and Expense

Declaration (form FL-150) and there was no Proof of Service on file for Petitioner's Request for Order. As such, the Court ordered Petitioner to:

a. File and serve an Income and Expense Declaration (form FL-150);

b. Have Respondent served with her Request for Order filed 10/8/25, Income and Expense Declaration (form FL-150), a blank Responsive Declaration (form FL-320), a copy of the Tentative Ruling Instructions, and a copy of the Findings and Order After Hearing for the 11/20/25 hearing date;

c. File a Proof of Service evidencing compliance with the orders set forth above.

5) On 1/20/26, Petitioner filed an Income and Expense Declaration (form FL-150).

6) There is still no Proof of Service on file for Petitioner's Request for Order

7) Respondent did not file a Responsive Declaration.

B. Findings and Order

1) The Court finds Petitioner failed to serve Respondent at least 16 Court days prior to the 3/3/26 hearing date, as required by Code of Civil Procedure section 1005(b), despite being provided a prior continuance to effectuate service.

2) The Court therefore finds that Petitioner failed to comply with the Court's 11/20/25 FOAH (filed 12/11/25).

3) Accordingly, Petitioner's 10/8/25 Request for Order is DENIED without prejudice and the 3/3/26 hearing date is VACATED.

4) Petitioner may file a new Request for Order seeking such relief. Petitioner is encouraged to seek assistance from the ACCESS Center. Information for contacting the ACCESS Center can be found here: https://sf.courts.ca.gov/access-legal-self-help-center.

5) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

MAKENZIE SHECKELLS, Petitioner VS. MOLHAM KAYALI, Respondent	Case Number: FDI-25-802212 Hearing Date: March 3, 2026 Hearing Time: 9:00 AM Department: 403 Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner Makenzie Sheckells (Mother) and Respondent Molham Kayali (Father). They share one minor child subject to these proceedings: Mira Zane Kayali (DOB: 08/21/21).
2) On November 14, 2025, Mother filed a Request for Order seeking initial custody/visitation orders. Mother requests joint legal custody and sole physical custody and seeks to establish a parenting plan.
3) On February 18, 2026, Father filed a Responsive Declaration, which has been read and considered by this Court.
4) On December 19, 2025, Mother filed a Reply Declaration, which has been read and considered by this Court.
5) On February 4, 2026, the parties attended Family Court Services (FCS) Mediation and reached a partial agreement.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) The Court *sua sponte* consolidates San Francisco Superior Court case number FDV-26-818889 into this action. San Francisco Superior Court case number FDI-25-802212 (i.e., the instant case) shall be the lead case for all future filings.

3) The Court confirms the prior order issued by Judge Mori in Department 404 regarding the parties' use of OFW for communication.

8) The Court confirms prior order that both parents shall have joint legal and joint physical custody of the minor child.

9) Given the parents' disagreement, the Court will not adopt their proposed 2/2/3 schedule. Instead, the Court will order a 3/3/4/4 parenting plan as follows:

    a. Father: Care and custody of the minor child every Sunday, Monday, and Tuesday.

    b. Mother: Care and custody of the minor child every Wednesday, Thursday and Friday.

    c. Parties will then alternate every Saturday.

    d. The schedule will commence on March 7, 2026 (Saturday) with Father having the first Saturday in March. Mother will have the second Saturday in March. Parties will alternate thereafter.

    e. All exchanges of the minor child shall occur at 7:30 p.m., on Tuesdays (every), Fridays (every other), and Saturdays (every other).

    f. The receiving parent shall pick up the minor child from the other parent's residence.

10) Mother's request for Right of First Refusal is DENIED.

11) The parents may utilize any daycare provider of their choosing and shall both be responsible for ½ the costs for any such work-related daycare. Neither parent may object to the daycare provider chosen by the other parent.

12) The Court will permit both parents to have one 7-day period of vacation time with the minor child each year. The parent wishing to utilize such vacation period, may not attached this vacation

period to their regular parenting time. They shall give the other parent a minimum of 45 days' notice of their intent to utilize a 7-day vacation with the minor child.

13) Neither parent shall remove the minor child from the State of California, without the written consent of the other parent.

14) All prior existing orders, not in conflict with the orders herein, shall remain in full force and effect.

15) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

JAZMIN LAIDLOW, Petitioner VS. MICHAEL B BROWN JR, Respondent	Case Number: FDV-21-815942 Hearing Date: March 3, 2026 Hearing Time: 9:00 AM Department: 403 Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner Jazmin Laidlow (Mother) and Respondent Michael B. Brown, Jr. (Father). They share one minor child: Jaxon Brown. The Court notes the minor child was appointed minor's counsel, Scott Goering.

2) On November 25, 2025, this Court ordered that the minor child shall continue to participate in psychotherapy. The Court ordered a Family Court Services (FCS) Tier II report to receive input from the minor child's treating clinician as to whether ongoing group therapy is sufficient to support future reunification efforts, or whether supplemental individual work is advisable. The Court confirmed its prior "stay" on in person and virtual visitation. The Court set a further review for March 3, 2026 to assess whether therapy remains effective and whether the minor child's views or clinical guidance suggest readiness for a change in contact between minor child and father.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
2) As of March 1, 2026, the Court has not yet received the Tier II report from FCS. The Court therefore **continues the matter to April 21, 2026 at 9:00 a.m., in Department 403** to allow FCS additional time to complete the report.
3) All prior orders, not in conflict shall remain in full force and effect.
4) The Court will prepare the Findings and Order After Hearing.